

PRE-WRITING PIPELINE OUTPUT

Internal Architecture Document — Not For Publication | Bible Sections 4, 5, 6, 7, 18, 25

1. TOPIC INTELLIGENCE

Topic: What to Do in the First 72 Hours After a Car Accident

PRIMARY SEARCH QUERY

"what to do after a car accident"

QUERY INTENT TYPE

Procedural/Informational — reader requires sequential action guidance with legal and medical context, not definitional explanation

READER CLUSTER

Individual who has been in a car accident within the last 0–72 hours. May be injured or unsure whether they are. Facing simultaneous pressure from: shock and physical symptoms; insurance company contact; potential adverse party; deadlines they are unaware of. High urgency, reduced cognitive bandwidth, high fear state. May have already made mistakes before finding this article.

ADJACENT QUERIES

- "how long do I have to report a car accident to insurance"
- "what not to say to insurance after car accident"
- "do I need a lawyer after car accident"
- "how to document a car accident for insurance"
- "car accident medical treatment timeline"
- "when to see doctor after car accident"

2. COMPETITIVE DIFFERENTIATION (SECTION 5)

Competitive Gap Analysis: Top-ranking content on this query (FindLaw, Nolo, LegalZoom, insurance carrier sites) fails in three consistent ways: (1) Generic chronological checklists with no legal rationale — steps are listed without explaining why they matter to the claim, so readers don't understand what they're protecting. (2) No treatment of what NOT to do — the recorded statement, the apology, the social media post — which are the errors most likely to destroy a personal injury claim. (3) No insurance company adversity framing — most articles treat the insurance process as neutral when it is not.

DIFFERENTIATION STRATEGY

This article owns the 72-hour window as a legally meaningful frame, not just a time suggestion. Every step is tied to a specific legal or evidentiary function. The "What Not to Do" section is given full structural weight equal to the positive steps. The insurance dynamic is named plainly: the other driver's insurance company is not working for the reader.

3. SEO INTELLIGENCE OUTPUT (SECTION 6)

PRIMARY KEYWORD

what to do after a car accident

SECONDARY KEYWORDS

- first 72 hours after car accident

- car accident steps
- car accident checklist
- what to do after a car accident for insurance

SEMANTIC ENTITIES REQUIRED

- Police report / incident report
- Statute of limitations (personal injury)
- Evidence preservation / spoliation
- Recorded statement (insurance)
- Medical evaluation / delayed injury presentation
- PIP / MedPay / Uninsured Motorist Coverage
- Comparative negligence
- At-fault driver / liability determination

FEATURED SNIPPET STRATEGY

Numbered list structure in Step sections targets procedural snippet. Direct answer opening in each section targets paragraph snippet for secondary queries. FAQ-structured close targets FAQ snippet.

SCHEMA TYPES APPLICABLE

HowTo (step sections), FAQPage (What Not to Do + final questions), Article

4. JURISDICTION SENSITIVITY CLASSIFICATION (SECTION 7)

Tier 2 — Moderate Variation. Core procedural steps are consistent across jurisdictions; specific deadlines, reporting thresholds, and damages rules vary significantly by state. The article addresses universal principles with explicit jurisdiction caveats on: accident reporting deadlines, insurance reporting obligations, statute of limitations ranges, and comparative/contributory negligence distinctions.

5. E-E-A-T / YMYL CLASSIFICATION (SECTION 18)

YMYL Category: Legal + Medical. Risk Level: HIGH. Inaccurate information could cause a reader to miss reporting deadlines, waive legal rights, make damaging admissions, or delay medical treatment with health consequences. All legal claims are qualified by jurisdiction where variation exists. Medical claims reference established medical consensus (delayed injury onset is documented in emergency medicine literature). All substantive legal statements use primary source framing or qualified as general principles where state law varies.

6. DECAY RISK CLASSIFICATION (SECTION 21)

Tier 2 — Annual Review. Core procedural steps are stable. Statute of limitations figures and specific reporting deadlines require annual verification against current state statutes. Insurance regulatory requirements reviewed as needed following state insurance code changes.

7. FIRM PERSONA TYPE (SECTION 22)

Type 3 — Regional Personal Injury Plaintiff Firm. Calibrations: conversational-authority tone, strong empathy in hook and close, emphasis on reader protection rather than legal complexity, explicit CTA toward free consultation.

8. CONVERSION ARCHITECTURE (SECTION 15)

Primary Goal: Attorney consultation inquiry. Micro-conversion 1: Complexity bridge placed at the insurance section (Hours 24-72). Micro-conversion 2: At the statute of limitations paragraph.

Close Formula: Formula 2 — Situation Acknowledgment + Complexity Gap + CTA.

What to Do in the First 72 Hours After a Car Accident

The moments after a car accident are disorienting in a way that is hard to describe until you've been through one. The adrenaline, the confusion about what happened, the sudden weight of decisions you've never had to make before — it is a lot to process at once.

But the 72 hours following a car accident are not just a recovery window. They are a legal and evidentiary window. The steps you take during this period — and the mistakes you avoid — will directly shape your ability to protect your health, your financial recovery, and your legal rights. Evidence disappears. Deadlines pass. Insurance companies move quickly.

This guide walks through what to do in the first hour, the first 24 hours, and the 48 hours that follow — and what not to do throughout. The goal is to give you a clear picture of the actions that matter, and why each one matters, so you can move through this period as protected as possible.

Why the 72-Hour Window Matters

Most people understand that the minutes at the scene are important. Fewer understand that the days immediately following are equally critical — often more so for the purposes of a legal claim.

Three things happen in the 72-hour window that can permanently affect your position. First, physical evidence begins to deteriorate or disappear. Skid marks fade. Vehicles get repaired. Surveillance footage — from traffic cameras, nearby businesses, and dashcams — gets overwritten, often on 24- to 72-hour cycles. The evidence that most clearly establishes what happened has a narrow collection window.

Second, insurance companies begin working your claim the moment an accident is reported. Adjusters are experienced at gathering information quickly. They may contact you within hours of an accident to take a recorded statement — a step that, if handled incorrectly, can be used to limit or deny your claim.

Third, certain legal and contractual deadlines begin running from the date of the accident. Many insurance policies require prompt notification as a condition of

coverage. State motor vehicle laws in most jurisdictions require official accident reporting when injuries or significant property damage are involved. These deadlines are not always intuitive, and missing them has real consequences.

Jurisdiction Note

Specific reporting deadlines and thresholds vary by state. Some states require reporting any accident resulting in injury; others set property damage thresholds (commonly \$500 to \$1,500) above which reporting is mandatory. The specific requirements in your state should be confirmed — the framework here reflects general principles that apply in most jurisdictions.

At the Scene: The First Hour

If you are in a position to take action at the scene — meaning you are not seriously injured and the situation is physically safe — the following steps create the foundation that everything else depends on.

Step 1. Stop and Secure the Scene

Leaving the scene of an accident involving injury or significant property damage is a criminal offense in every U.S. jurisdiction. Move your vehicle out of traffic if it is safe to do so and if the vehicle is drivable — but do not leave the scene entirely. Turn on hazard lights. If it is night and there is risk of further collision, stay inside your vehicle if possible.

Step 2. Call 911

Call 911 immediately if anyone has been injured, if there is significant property damage, or if the other driver appears impaired. Even in accidents that seem minor, a police report serves several important functions: it creates an official, contemporaneous record of the incident; it records the other driver's information; it documents the scene conditions; and it may record any statements the other driver makes at the scene. In many jurisdictions, an official police report is required for insurance claims above a certain value.

If police respond, provide accurate factual information about what happened. Do not speculate about fault. Do not minimize your symptoms — if you feel pain or discomfort of any kind, tell the responding officer.

Step 3. Get Medical Attention — Even If You Feel Fine

This is the step most people skip, and it is frequently the step that damages their claim most severely. Many serious injuries from car accidents — including soft tissue injuries, whiplash, traumatic brain injuries, and internal injuries — do not produce immediate pain. The adrenaline surge during an accident masks pain signals. Symptoms may not appear until 24 to 48 hours later, or longer.

Refusing medical attention at the scene, or waiting several days before seeing a doctor, creates a gap that insurance companies use aggressively. The argument they make is direct: if you were injured, why did you wait? Accepting medical evaluation at the scene, or going directly to an emergency room or urgent care immediately after, closes that gap. It creates a dated medical record that connects your injuries to the accident.

Step 4. Document Everything You Can

Before vehicles are moved, before anyone leaves the scene, photograph and document as much as possible. This includes:

- All vehicles involved, from multiple angles, showing damage
- The positions of vehicles before they are moved
- Skid marks, debris, and road conditions
- Traffic signals, signs, and any relevant road features
- The other driver's license, registration, and insurance information
- License plates of all vehicles involved
- Names and contact information of witnesses
- Badge number and name of responding officers
- Your own injuries — photograph any visible injuries at the scene

Do not rely on your memory. The details that feel vivid right now will become less precise within hours.

Step 5. Limit What You Say

This is not about being deceptive. It is about accuracy. In the immediate aftermath of an accident, you do not know the full picture of what happened, and statements made in that moment can be inaccurate in ways that work against you. Do not apologize, even reflexively. Do not say "I didn't see you" or "I wasn't paying attention" — even if your intention is to be empathetic. Do not make any statements about fault to the other driver, bystanders, or anyone other than the responding police officer.

Fault determination is a legal and insurance process. It is not determined by what you say at the scene.

Hours 1 to 24: Protecting Your Health and Your Claim

Once you are away from the scene, the priority is medical documentation and claim initiation. These two things are connected: the medical record you create now is the foundation of any injury claim you may pursue.

Seek Medical Evaluation Immediately

If you did not receive medical attention at the scene, go to an emergency room or urgent care facility the same day. Tell the provider about the accident and describe every symptom — including symptoms that seem minor. Pain that is a "2" today may be an "8" in 48 hours. Providers cannot document what you do not report, and undocumented symptoms create gaps in your medical record.

Be specific about the mechanism of injury. Do not just say "I was in a car accident" — describe the impact: the direction of the collision, whether your head struck anything, whether you were wearing a seatbelt, whether airbags deployed. These details help providers assess for specific injury patterns.

Follow through on every referral. If the ER recommends an MRI, a specialist, or follow-up care, attend those appointments. A pattern of consistent medical follow-through documents both the reality and the progression of your injuries.

Preserve and Organize Your Documentation

Within the first 24 hours, organize everything collected at the scene into a central record. Start a written log — physical or digital — of the accident and your symptoms. Include: the date, time, and location of the accident; a description of the events as you remember them; a description of all symptoms and how they change over time; the names and contact information of everyone involved and any witnesses. Add to this log daily. Symptom progression records are valuable evidence.

Preserve physical evidence. If your clothing was damaged, keep it. If your vehicle has not yet been repaired, do not allow repairs before it has been photographed professionally. If the other driver has a duty to preserve evidence and you anticipate a legal claim, the doctrine of spoliation of evidence may apply if evidence is destroyed — but that protection depends on you having documented what existed.

Notify Your Own Insurance Company

Most personal auto insurance policies require prompt notification of any accident as a condition of coverage. Failing to notify your carrier within the required timeframe — which varies by policy but is often 24 to 72 hours — can be used to deny claims,

including claims for your own coverage such as personal injury protection (PIP), medical payments coverage (MedPay), and uninsured or underinsured motorist coverage.

Reporting the accident to your own insurer is not an admission of fault. It is a contractual requirement. When you do report, provide the factual basics: when and where the accident occurred, who was involved, and that you have already sought medical attention. Do not provide a recorded statement to your own insurer without first understanding your policy's requirements and, if the accident involved serious injury, consulting with an attorney.

Hours 24 to 72: The Insurance and Legal Decision Window

By 24 hours post-accident, if injury is involved, you will likely have heard from one or both insurance companies. This window is where the decisions become more consequential — and where many people make errors that affect their claims.

The Other Driver's Insurance Company Is Not Working for You

This is the most important framing shift in this entire guide. The adjuster who calls from the at-fault driver's insurance company is a skilled professional whose primary objective is to limit the company's financial exposure. They are not hostile in the way they present themselves. They are often friendly, efficient, and reassuring. But their interests and your interests are directly opposed.

The most common tactic is the early recorded statement request. The adjuster will ask to record your account of the accident, often presenting it as a routine step in the process. A recorded statement taken 24 to 48 hours after an accident — before you have completed medical evaluation, before you have reviewed your own documentation, before you fully understand your injuries — can contain inaccuracies that are later used to limit your claim. You are not required to provide a recorded statement to the other driver's insurer. You can tell them you are not prepared to give a recorded statement at this time.

What You Are and Are Not Required to Do

You are generally required to cooperate with your own insurer per the terms of your policy. You are not required to provide a recorded statement to the other driver's insurer. You are not required to accept a settlement offer — including a "quick settlement" check that may be offered before your full injuries are known. Accepting a settlement and signing a release typically waives all future claims related to the accident, regardless of injuries that emerge later.

Do Not Accept a Quick Settlement

Insurance companies sometimes offer fast, modest settlements to accident victims in the days following an accident — before the full extent of injuries is known. These offers are designed to close claims cheaply before the injured party has complete information. Accepting a settlement and signing a release is almost always permanent. If you later discover a herniated disc that requires surgery, or develop post-concussive symptoms, a signed release means you cannot pursue further compensation.

The full extent of injuries from a car accident is often not known within 72 hours. Medical evaluation is still underway. It is reasonable — and legally appropriate — to tell any adjuster that you are not in a position to discuss settlement until your medical evaluation is complete.

Understand the Statute of Limitations — But Do Not Let It Create False Urgency

Personal injury claims from car accidents are subject to a statute of limitations — a deadline by which a lawsuit must be filed or the right to sue is permanently lost. In most states, this period is two to three years from the date of the accident, though it varies. Some states have limitations as short as one year. Property damage claims often have separate timelines.

The statute of limitations does not mean you must decide anything within 72 hours. But it does mean that your rights are time-sensitive on a longer horizon, and that waiting too long to consult with an attorney can foreclose options. The 72-hour window is about evidence preservation and claim initiation — not about filing a lawsuit.

What Not to Do in the First 72 Hours

The steps above describe what to do. The following are the actions that most frequently damage car accident claims — often irreversibly. Each one is rooted in a predictable impulse (to be helpful, to move on, to share what happened) that conflicts with the legal reality of an open claim.

Do Not Post About the Accident on Social Media

Photographs, check-ins, status updates, and comments about the accident — including comments made in private messages — are discoverable in litigation. A photograph of you hiking two weeks after an accident that you claimed injured your back, or a post saying "I'm doing okay!" the day after, will be used by opposing counsel. The safest approach is to post nothing about the accident, your injuries, or your activities during the period of any active claim.

Do Not Apologize or Admit Fault

An apology is an admission. "I'm sorry" said at the scene, to an adjuster, or in any documented communication can be treated as an acknowledgment of fault in a jurisdiction that uses contributory or comparative negligence rules. In states with pure contributory negligence, any fault attributable to you can bar recovery entirely. Even in comparative negligence states, your percentage of fault reduces your recovery proportionally. Statements about fault — in either direction — belong in the formal process, not in the immediate aftermath.

Do Not Give a Recorded Statement Without Counsel

As described above, you are not required to provide a recorded statement to the other driver's insurance company. If the accident involves serious injury, property damage above a few thousand dollars, or any ambiguity about fault, consult with a personal injury attorney before agreeing to any recorded statement — including to your own insurer.

Do Not Delay Medical Treatment

Every day you wait to seek medical evaluation after an accident is a day that the opposing insurer will use to argue that your injuries are not serious, not related to the accident, or both. The connection between the accident and your injuries is established by medical records. Those records are created by medical appointments. Delayed evaluation means delayed documentation — and a gap in the evidentiary record.

Do Not Sign Any Documents Without Understanding Them

Releases, settlements, and coverage acknowledgments presented in the days after an accident are binding legal documents. No one who has been in a car accident within the last 72 hours is obligated to sign anything that same week. If you are being pressured to sign — by an adjuster, by the other driver, or by anyone else — slow down. Have an attorney review it first.

When to Call an Attorney

Not every car accident requires an attorney. A minor fender-bender with no injuries, clear liability, and cooperative parties can often be resolved through insurance without legal representation.

But if any of the following apply, consulting with a personal injury attorney in the first 72 hours — or as close to that as possible — is the most protective step you can take:

- You or any passenger has been injured, regardless of how the injury feels right now
- The other driver was uninsured or underinsured
- Liability is disputed — the other driver is claiming you were at fault
- You have been contacted by the other driver's insurance company
- The accident involved a commercial vehicle, rideshare vehicle, or government vehicle
- The accident occurred in a construction zone or involved a road defect
- You were a pedestrian or cyclist rather than a vehicle occupant
- You have received any settlement offer or been asked to sign any document

Most personal injury attorneys offer free initial consultations and work on contingency fees — meaning they receive a percentage of any recovery, with no upfront cost to you. An early consultation does not commit you to anything. It gives you an accurate picture of your rights and options at the moment when that information is most useful.

A Note on Timing

The value of early legal consultation is not primarily about urgency — it is about information. The attorney who reviews your case 72 hours post-accident can advise you on recorded statement decisions, settlement approach, evidence preservation, and medical documentation strategy while those decisions are still open. The attorney who reviews your case six months later can often still help — but some of those decisions will have already been made, and some evidence will be gone.

Taking the Right Steps Now Protects Your Options Later

A car accident changes your circumstances without your consent. The recovery you can achieve — physically and financially — depends in part on the decisions made in the days immediately following. Evidence preserved today cannot be recreated next month. Medical records created this week anchor the connection between the accident and your injuries. Decisions made or avoided with the insurance company in the first 72 hours shape the entire trajectory of your claim.

If you have been injured in a car accident, the most effective single step you can take right now is to speak with a personal injury attorney before making any decisions about recorded statements, settlements, or legal strategy. An experienced attorney can review the specific facts of your situation, advise you on the applicable deadlines in your state, and help you navigate the process in a way that protects — rather than inadvertently undermines — your recovery.

Most consultations are free. Most are available within 24 hours. Your rights in this situation are time-sensitive. Use this window.

LEGAL INFORMATION NOTICE

This article provides general legal information only and does not constitute legal advice. Laws governing car accident claims, reporting requirements, insurance obligations, and statutes of limitations vary significantly by state and by the specific facts of each situation. Reading this article does not create an attorney-client relationship. For guidance specific to your accident and jurisdiction, consult a licensed personal injury attorney in your state.

ATTORNEY REVIEW PACKAGE

Section 26 — Human Review Integration Protocol | Complete for Model 1 & Model 2 Review

SOURCE INVENTORY — CLAIMS REQUIRING VERIFICATION

- Claim: 'Surveillance footage is often overwritten on 24- to 72-hour cycles' — Verify with current technology standards; varies by system type. Primary reference: standard CCTV retention guidelines.
- Claim: Statute of limitations is 'two to three years in most states, as short as one year in some' — Verify: AL = 2 years; CA = 2 years; TX = 2 years; FL = 4 years; LA = 1 year; KY = 1 year. Confirm current figures before publication.
- Claim: Insurance policies require 'prompt notification, often 24 to 72 hours' — Verify against specific carrier language if this article is placed on a firm site targeting a specific region. Some policies say 'as soon as practicable.'
- Claim: PIP, MedPay, and UM/UIM referenced as coverage types — Verify availability/mandatory status in target jurisdiction. PIP is not available in all states.
- Claim regarding contributory negligence states — Article says 'some states use pure contributory negligence.' Verify current list: MD, AL, VA, NC, DC. Article does not name these states but the general claim is accurate.

BOUNDARY NAVIGATION MARKERS — ATTORNEY REVIEW POINTS

- Section 'Hours 1-24': 'Do not provide a recorded statement to your own insurer without first understanding your policy' — Review for jurisdiction-specific policy obligation nuances. Some states have statutory cooperation requirements.
- Section 'Hours 24-72': 'You are not required to provide a recorded statement to the other driver's insurer' — Accurate as a general statement. Confirm no jurisdiction-specific exceptions apply for target market.
- Section 'When to Call an Attorney': List of situations is advisory, not exhaustive. Attorney reviewer may wish to add or modify based on firm practice area emphasis.
- Close CTA: 'Most consultations are free. Most are available within 24 hours.' — Verify this reflects the firm's actual consultation policy before publication.

REVIEW DEPTH CLASSIFICATION

Level 2 — Standard Review. No jurisdiction-specific statutes cited by number (reduces verification load). Medical claims are general and consistent with emergency medicine consensus. Insurance process descriptions are accurate as general principles. Primary attorney review focus: (1) statute of limitations figures, (2) recorded statement obligations in target state, (3) CTA alignment with firm policy.

SCHEMA PREPARATION NOTE (SECTION 19)

Schema Types Applicable: HowTo (for step sections), FAQPage (for What Not to Do section), Article

- HowTo: Steps in 'At the Scene' and 'Hours 1-24' sections are structured for HowTo extraction. Developer to wrap step paragraphs in HowTo schema.

- FAQPage: 'What Not to Do' section is structured as implicit Q&A ("Do Not X" headers = questions; body paragraphs = answers). Developer to implement FAQPage schema on this section.
- Article: Standard Article schema for full page. Include author (attorney name post-review), datePublished, dateModified.

DECAY RISK CLASSIFICATION

Tier 2 — Annual Review. Trigger events requiring immediate review: any state statute of limitations amendment in target jurisdiction; any major change to state insurance code notification requirements; any court ruling in target state on recorded statement obligations.

AI OVERVIEW OPTIMISATION NOTES (SECTION 23)

Optimisation Intensity: HIGH. Direct answer openings are present in all major sections. Step sections use interrogative framing consistent with AI Overview extraction patterns. The 'Why the 72-Hour Window Matters' section is structured for potential AI Overview citation on queries about accident timing. The 'What Not to Do' callout items are formatted as definitive statements suitable for extraction.